

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC031267: DANIEL ELMAN, et al. vs FCA US LLC
09/09/2026 in Department 44
Motion Terminating or Issue, Evidentiary and Monetary Sanctions

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

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Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant FCA US, LLC’s Motion for Terminating or, Alternatively, Issue, Evidentiary, and Monetary Sanctions

Tentative Ruling:

Defendant FCA US, LLC’s Motion for Terminating or, Alternatively, Issue, Evidentiary, and Monetary Sanctions is GRANTED in part and DENIED in part.

The request for terminating sanctions is DENIED. The requests for issue sanctions and evidentiary sanctions are DENIED without prejudice.

The Court finds that its July 2, 2026 order required Plaintiffs counsel, and plaintiffs Daniel Elman and Elizabeth Elman (collectively “Plaintiffs”) to produce the subject 2018 Chrysler Pacifica for inspection within 15 days; Plaintiffs did not produce the vehicle by the ordered deadline; Plaintiffs did not seek relief from the order before the deadline expired; and the prior cancellation of a May 22 inspection date and the subsequent breakdown in communications between Plaintiffs and their counsel do not constitute good cause or substantial justification for failure to comply with the July 2 order.

Pursuant to Code of Civil Procedure section 177.5, the Court GRANTS Defendant's requests for sanctions against Plaintiffs' counsel, Larry Chae and Breana Rucker of Strategic Legal Practices, and Plaintiffs Daniel Elman and Elizabeth Elman, jointly and severally in the total amount of \$1,500, payable to the Court within 30 days of service of notice of this order.

The sanctions, imposed jointly against Plaintiffs and Plaintiffs' counsel, are reportable to the State Bar under Business & Professions Code section 6086.7(a)(3) and (b). The Court directs the Court clerk to notify the State Bar in accordance with Business & Professions Code section 6086.7(b), and this order shall serve as notice to the parties and their counsel of the sanctions under California Rules of Court, rule 10.609(c). The attorneys sanctioned in this order have a separate and parallel self-reporting duty under Business & Professions Code section 6068(o)(3) to the State Bar.

FCA's request for compensatory monetary discovery sanctions in its favor is DENIED because the declaration submitted with the motion does not set forth facts supporting the amount of such sanctions as required by Code of Civil Procedure section 2023.040.

The July 2, 2026 inspection order remains in effect. Plaintiffs shall make the subject vehicle available for inspection on one of September 14, 15, 16, 17, or 18, 2026, at FCA's election and on reasonable written notice. The parties may agree in writing to another inspection date before October 2, 2026. This order is limited to completion of the vehicle inspection previously ordered on July 2 and does not otherwise reopen discovery. Any further failure to comply may result in additional sanctions, including issue, evidentiary, or terminating sanctions.

The Court clerk shall give notice to all counsel and parties of record and the State Bar.

I. Background

A. Factual Background

Plaintiffs Daniel Elman and Elizabeth Elman allege that, on or about March 23, 2019, they entered into a warranty contract with FCA concerning a 2018 Chrysler Pacifica, VIN 2C4RC1AG7JR355903. (Complaint, ¶ 9.) They allege that the vehicle was covered by express warranties and constituted consumer goods under the Song-Beverly Consumer Warranty Act. (Complaint, ¶¶ 10-13.) Plaintiffs allege that transmission, engine, electrical, and other defects manifested during the applicable warranty period and substantially impaired the vehicle's use, value, or safety. (Complaint, ¶¶ 14-15.)

Plaintiffs further allege that FCA knew of a transmission defect, failed to disclose it, and failed to repair the vehicle after a reasonable number of opportunities or promptly repurchase or replace it. (Complaint, ¶¶ 18-31.) The Complaint asserts Song-Beverly causes of action based on, among other things, alleged failure to repair and repurchase the vehicle and seeks actual damages and civil penalties. (Complaint, ¶¶ 38-51.) The Complaint also pleaded fraudulent inducement by concealment. (Complaint, ¶¶ 57-58.)

The present dispute concerns FCA's efforts to obtain two categories of discovery central to those allegations: Plaintiffs' depositions and an inspection of the subject vehicle. The vehicle inspection bears directly on the alleged defects and impairment pleaded in paragraphs 14-15 of the Complaint, as well as the alleged repair and repurchase obligations pleaded in paragraphs 30-41.

B. Procedural Background

On July 2, 2026, the Court granted FCA's motion to compel production of the subject vehicle for inspection and ordered Plaintiffs to produce the vehicle within 15 days, i.e., by July 17, 2026. (7/2/26 Min. Order, p. 1; Tolmoyan Decl., ¶¶ 9-10.) Plaintiffs did not produce the vehicle by that deadline. Plaintiffs now acknowledge that the deadline was not met. (Pan Decl., ¶¶ 8-12.)

The parties had previously agreed to a May 22, 2026 inspection date. Plaintiffs submit evidence that FCA canceled that date on April 10 and proposed June 22, when Plaintiffs were unavailable. (Pan Decl., ¶¶ 8-9 & Exs. 4-5.) This history explains some pre-order scheduling difficulty, but it does not alter the July 2 order or its July 17 deadline.

Separately, FCA moved to compel both Plaintiffs' depositions. Plaintiffs' July 22 opposition to those motions represented that counsel had been unable to reestablish communication with Plaintiffs after April 22, 2026. (Reply Tolmoyan Decl., ¶ 5 & Ex. G.) On July 22, Plaintiffs' then-counsel also advised FCA by email that the firm had "presently lost contact with Plaintiffs" and was attempting to reestablish communication so the depositions and vehicle inspection could be scheduled. (Reply Tolmoyan Decl., ¶ 5 & Ex. G.) FCA contends that this was disclosed only after approximately three months and points to a May 14 communication in which Plaintiffs' counsel stated it was coordinating with Plaintiffs concerning inspection dates. (Reply Tolmoyan Decl., ¶ 6 & Ex. H.)

According to FCA's reply evidence, Plaintiffs' counsel advised FCA that communication had been reestablished by July 24 and July 27. (Reply Tolmoyan Decl., ¶ 2 & Ex. A.) FCA noticed both depositions for July 30; Plaintiffs did not appear, and FCA obtained certificates of nonappearance. (Reply Tolmoyan Decl., ¶¶ 3-4 & Exs. B-F.)

On July 31, 2026, the Court granted FCA's motions to compel Plaintiffs' depositions and ordered Daniel and Elizabeth Elman to be available for deposition "on or before Monday, August 3, 2026 at 1:30 p.m." (7/31/26 Min. Order, pp. 1-2.)

FCA filed the present motion on August 3, 2026 at approximately 10:24 a.m. (approximately three hours before the imposed deadline). The motion seeks terminating sanctions or, alternatively, issue, evidentiary, and monetary sanctions. Its notice is captioned as seeking sanctions "for violation of the Court's July 2, 2026 Order," but the motion also relies on the July 31 deposition order and Plaintiffs' prior deposition nonappearances. FCA seeks sanctions against Plaintiffs and six attorneys from Strategic Legal Practices, APC, and the notice requests "including \$3,000 payable to the Court." (Mtn., pp. 1-2; Tolmoyan Decl., ¶¶ 13-15.)

Later that day, when the case was called for trial, FCA advised the Court that the depositions had not gone forward and that Plaintiffs had not been produced. Plaintiffs' counsel represented that attorney Desiree Washington had resigned the preceding Friday, that Plaintiffs were then available during the week, and that the vehicle inspection could occur during the week. (8/3/26 Min. Order, p. 1.) The Court granted FCA's Motion in Limine No. 1 to preclude Plaintiffs from testifying and Motion in Limine No. 2 to exclude Plaintiffs' experts. (*Id.*, p. 2.) (The Court also imposed a separate \$900 sanction against attorney Breana Rucker under Code of Civil Procedure section 177.5 for failure to follow Department 44 trial-document orders. This \$900 sanction concerned trial-document requirements, not the July 2 vehicle-inspection order. (*Id.*))

Plaintiffs submit that counsel and FCA thereafter agreed to take both Plaintiffs' depositions on August 5 and that both depositions were completed that day. (Pan Decl., ¶¶ 6-7 & Ex. 3.) Plaintiffs further state that, after communication was restored, they offered vehicle-inspection availability from July 29 through August 31, and later offered September 14, 15, 16, 17, and 18. (Pan Decl., ¶¶ 5, 10-12.) On August 21, Plaintiffs' counsel provided the September dates to FCA and asked FCA to select one; according to Pan, FCA had not selected a date when the opposition was prepared. (Pan Decl., ¶ 11.)

Plaintiffs filed their opposition on August 26, 2026. FCA filed its reply on September 1, 2026. The August 3 minute order directs counsel to return on October 2, 2026 unless otherwise notified.

II. Preliminary Matters

A. Scope of the Noticed Motion and Monetary Request

The Court considers the July 2 vehicle-inspection order and the July 31 deposition order separately in determining whether sanctions are warranted. The present motion was electronically filed on August 3 at approximately 10:24 a.m., while the July 31 order gave Plaintiffs until August 3 at 1:30 p.m. to be available for deposition. Thus, when FCA filed the motion, the deadline in the July 31 order had not yet expired. Although the later failure to meet that deadline and the subsequent August 5 depositions are relevant to the overall history, current prejudice, and proportionality of any sanction, the July 31 order had not yet been violated when the noticed motion was filed. The motion is therefore most appropriately adjudicated as a sanctions motion based principally on the undisputed violation of the July 2 vehicle-inspection order, consistent with the motion's caption and notice.

This distinction also affects FCA's request under Code of Civil Procedure section 177.5. Section 177.5 authorizes a money sanction payable to the Court, not exceeding \$1,500, for violation of a lawful court order without good cause or substantial justification, after notice and an opportunity to be heard. An order imposing such a sanction must recite in detail the conduct or circumstances justifying it. (Code Civ. Proc., § 177.5; *Caldwell v. Samuels Jewelers* (1990) 222 Cal.App.3d 970, 976-978.) Because the present motion was filed before the July 31 deposition deadline expired, the Court treats \$1,500 as the maximum section 177.5 sanction supported by the violation actually ripe and noticed when the motion was filed (i.e., the July 2 inspection order).

FCA also seeks discovery-based monetary sanctions. A discovery sanctions request must identify the persons against whom sanctions are sought, specify the type of sanction, and be accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought. (Code Civ. Proc., § 2023.040.) Although FCA's notice identifies Plaintiffs and six attorneys, the moving declaration states only that FCA incurred reasonable fees and costs in preparing the motion and does not identify hours, rates, or an amount attributable to those fees. (Tolmoyan Decl., ¶ 15.) The notice's request for \$3,000 "payable to the Court" is a section 177.5 request, not evidence supporting compensatory attorney-fee sanctions in favor of FCA. The Court therefore lacks a sufficient evidentiary basis to calculate a discovery-expense award under section 2023.030, subdivision (a).

III. Discussion

A. Legal Standard: Discovery Sanctions

The Civil Discovery Act authorizes sanctions for misuse of the discovery process. Code of Civil Procedure section 2023.010 identifies nonexclusive forms of misuse, including failing to respond or submit to an authorized method of discovery and disobeying a court order to provide discovery. Section 2023.030 identifies monetary, issue, evidentiary, and terminating sanctions. The general provisions also authorize sanctions for broader patterns of discovery abuse, although courts should ordinarily look to the procedures and limitations contained in the discovery-method-specific provisions when they address the conduct at issue. (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 61-65, 71-75.)

For an inspection demand, Code of Civil Procedure sections 2031.310, subdivision (i), and 2031.320, subdivision (c), authorize issue, evidence, terminating, or monetary sanctions when a party fails to obey an order compelling a further response or compelling inspection. For a deposition, section 2025.450, subdivision (h), permits issue, evidence, terminating, or monetary sanctions if the party or party-affiliated deponent fails to obey an order compelling attendance, testimony, and production. (Code Civ. Proc., §§ 2031.310(i), 2031.320(c), 2025.450(h).)

The sanction selected must be remedial and proportionate to the discovery misuse, rather than a weapon for punishment or forfeiture. (*City of Los Angeles, supra*, at p. 63; *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604-606.) A more severe sanction is disfavored if a lesser sanction is available, and the discovery statutes generally reflect an incremental approach beginning with monetary sanctions and ending with termination. (*City of Los Angeles, supra*, at p. 63; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.)

A terminating sanction may be appropriate where noncompliance is willful, is preceded by a history of abuse, and the record shows lesser sanctions would not produce compliance. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280; *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390-391.) Terminating sanctions should generally not be imposed as the first remedial measure unless the case is extreme or the record clearly demonstrates lesser sanctions would be ineffective. (*Lopez, supra*, at pp. 604-606.) The recently published *Higginson v. Kia Motors America, Inc.* (2026) 118 Cal.App.5th 316 similarly explains

that nonmonetary sanctions are discretionary, that lesser measures ordinarily should be considered first, and that even willful disobedience of a discovery order does not make termination mandatory. (*Id.* at pp. 338-342.)

“Willful” in this context does not require a wrongful intent to disobey. A conscious or intentional failure to act may suffice, and a lack of diligence may be deemed willful where the party understood the obligation, had the ability to comply, and did not comply. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787-788.) Dismissal is not authorized where noncompliance results from inability rather than willfulness, bad faith, or fault. (*Id.* at pp. 793-794.)

B. Terminating Sanctions Are Not Warranted on This Record

There is no genuine dispute that Plaintiffs violated the July 2 inspection order. The Court directed production of the vehicle within 15 days, and the vehicle was not produced by July 17. Plaintiffs expressly acknowledge the missed deadline. (Pan Decl., ¶¶ 8-12.) The prior May 22 inspection date canceled by FCA does not substantially justify noncompliance with the later court order, and neither Plaintiffs nor counsel sought relief from the July 2 order before its deadline expired. Likewise, the attorney-client communication breakdown does not eliminate Plaintiffs’ obligation to comply with an order in litigation they initiated.

The record also supports treating the July 2 noncompliance as willful in the discovery-sanctions sense, even without finding an intent to flout the Court. Counsel knew that communication with Plaintiffs had broken down and, by the account given in the July 22 deposition opposition, had been unable to reestablish contact after April 22. (Reply Tolmoyan Decl., ¶ 5 & Ex. G.) Yet the inspection order was allowed to expire without compliance or a request for relief. Under *Deyo*, a wrongful purpose is not required. (*Deyo, supra*, at pp. 787-788.)

This finding, however, does not answer which sanction is proportionate. The current record does not establish the sort of escalating, unremedied discovery abuse that ordinarily supports dismissal. There was no prior monetary, issue, or evidentiary discovery sanction imposed for the vehicle-inspection violation before FCA sought termination. The separate \$900 sanction imposed on August 3 concerned failure to comply with Department 44 trial-document orders, not the inspection order. (8/3/26 Min. Order, p. 2.) And the Court’s August 3 rulings on FCA’s Motions in Limine Nos. 1 and 2 already imposed substantial evidentiary consequences arising from Plaintiffs’ failure to complete depositions and expert discovery. (*Id.*)

Moreover, the subsequent conduct demonstrates that lesser measures can produce compliance. Both Plaintiffs completed their depositions on August 5. (Pan Decl., ¶¶ 6-7.) With respect to the vehicle itself, Plaintiffs offered availability after communication was restored, including July 29 through August 31, and then September 14-18. (Pan Decl., ¶¶ 5, 10-12.) FCA correctly observes that these offers came after the July 17 deadline and after the ordinary discovery cutoff. They therefore do not erase the violation. But they are relevant to whether the ultimate sanction is presently necessary to secure compliance or protect FCA from prejudice. They show something materially different from an ongoing refusal to submit to inspection.

The defense authorities do not compel a different result. In *Doppes*, the manufacturer violated multiple discovery orders, remained undeterred by escalating monetary and issue sanctions, and continued to engage in new forms of discovery abuse during trial; the Court of Appeal characterized its holding that termination was required as “extraordinary” and “unprecedented.” (*Doppes*, *supra*, at pp. 971, 993-996; see *Higginson*, *supra*, at pp. 341-342.) Similarly, *Collisson & Kaplan v. Hartunian* (1994) 21 Cal.App.4th 1611 involved repeated evasive discovery responses after numerous formal and informal efforts and an order compelling compliant responses. (*Id.* at pp. 1618-1620.) Here, although the violations are serious and have disrupted trial preparation, Plaintiffs have since completed the depositions and repeatedly offered to complete the vehicle inspection.

The prejudice to FCA is real. The requested inspection concerns the same alleged defects and impairment that are central to Plaintiffs’ theory of liability. (Complaint, ¶¶ 14-15, 30-41.) The delay deprived FCA of the inspection within the schedule ordered by the Court and complicated expert and trial preparation. But the purpose of a discovery sanction is to remedy that prejudice, not to give FCA a merits victory broader than necessary to address it. (*City of Los Angeles*, *supra*, at p. 63; *Lopez*, *supra*, at p. 604.) The Court can address the remaining inspection issue directly by setting a final, date-certain opportunity to complete the inspection and by warning that any further failure to comply may support escalating sanctions.

FCA also argues in reply that discovery is closed and that the continuance of trial did not reopen discovery. This general proposition is correct. (Code Civ. Proc., § 2024.020(b).) But the July 2 order itself required the vehicle inspection to occur by July 17, and the present issue is enforcement of that existing order, not a request by Plaintiffs to initiate new discovery. A renewed deadline limited to completion of the previously compelled vehicle inspection does not require a general reopening of discovery. Nothing in the proposed ruling authorizes any additional discovery. Any party seeking further discovery beyond the inspection may proceed by a properly noticed motion under Code of Civil Procedure section 2024.050.

For these reasons, the Court denies terminating sanctions.

C. The Requested Issue and Evidentiary Sanctions Are Overbroad

FCA alternatively asks the Court to establish approximately ten merits facts, including that the vehicle was not defective, did not substantially impair use, value, or safety, was repaired after a reasonable number of opportunities, that FCA did not willfully fail to repurchase it, and that Plaintiffs suffered no damages. (Mtn., pp. 9-10.) These proposed findings track core elements of Plaintiffs’ pleaded Song-Beverly claims. (See Complaint, ¶¶ 11, 14-15, 30-41.) Imposing them would largely decide the action by sanction and would function much like a terminating sanction.

Issue and evidentiary sanctions must be tailored to the harm caused by the withheld discovery and should not exceed what is reasonably necessary to protect the party denied discovery. (*Doppes*, *supra*, at p. 992; *Lopez*, *supra*, at p. 604.) On the present record, declaring that the vehicle had no defect, that FCA satisfied its statutory obligations, and that Plaintiffs suffered no

damages goes materially beyond the prejudice caused by the delayed inspection. The Court has already granted FCA's Motion in Limine No. 1 precluding Plaintiffs from testifying and Motion in Limine No. 2 excluding Plaintiffs' experts. (8/3/26 Min. Order, p. 2.) Additional broad evidentiary sanctions based on the same discovery history would be duplicative unless and until further noncompliance occurs.

Accordingly, the requested issue and evidentiary sanctions are denied.

D. Monetary Sanctions and Final Compliance Order Are Appropriate for Plaintiffs' Violation of the July 2, 2026 Court Order

Although case-dispositive sanctions are not warranted, no sanction at all would inadequately address the undisputed violation of the July 2 order. The Court expressly ordered Plaintiffs to produce the vehicle within 15 days. Plaintiffs did not do so, did not seek relief from the order before the deadline, and still had not produced the vehicle when the present motion was briefed. Plaintiffs' explanations (i.e., FCA's cancellation of a May inspection date and a breakdown in communication with counsel) do not constitute good cause or substantial justification for disregarding the later July 2 order.

Code of Civil Procedure section 177.5 therefore supports a reasonable monetary sanction payable to the Court. Because the motion was filed before the July 31 deposition deadline expired, and because the notice is expressly framed around violation of the July 2 order, the Court limits the section 177.5 sanction on this motion to \$1,500. The sanction is imposed against Plaintiffs and Plaintiffs' counsel, who were ordered to produce the vehicle. The amount of these sanctions are reportable to the California State Bar, and the Court will make this report. Plaintiffs' counsel have a parallel self-reporting requirement to the State Bar given the amount of sanctions.

FCA's separate request for compensatory monetary sanctions in its favor is denied for lack of evidentiary support as to amount. Code of Civil Procedure section 2023.040 requires a declaration setting forth facts supporting the amount sought. Tolmoyan states only that FCA incurred reasonable fees and costs in bringing the motion, without identifying the amount, hours, rate, or allocation of those expenses. (Tolmoyan Decl., ¶ 15.)

Finally, Plaintiffs are ordered to make the subject vehicle available for the inspection previously compelled. Plaintiffs have represented under oath that the vehicle is available September 14-18, 2026. (Pan Decl., ¶¶ 10-12.) FCA is permitted to select one of those dates on reasonable written notice. The order is expressly limited to completion of the July 2 inspection order and does not otherwise reopen discovery. Any further failure to produce the vehicle after this renewed order will materially change the sanctions calculus and may support escalating sanctions, including issue, evidence, or terminating sanctions.